NTOMBIZODWA NHOWE
versus
MONICA GONDO
and
RAYMOND TAFADZWA NHOWE
and
THE SHERIFF OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 7, 13 & 20 May 2026

Chamber Application

L. Matapura, for the applicant
K. Gama, for the 1st respondent
No appearance for the 2nd & 3rd respondents

DEMBURE J:

1. This is a chamber application for suspension of the sale of a dwelling. The application is instituted in terms of subrule (14) as read with subrule (15) of rule 71 of the High Court Rules, 2021. The applicant seeks that the sale in execution of a certain piece of land situate in the District of Salisbury, called the remaining extent of stand 13687 Salisbury Township of stand 13755A Salisbury Township (*"the property"),* be suspended subject to her paying a monthly instalment of US$500.00 until the debt is fully paid and that there be no order as to costs. The application is opposed by the first respondent.

2. On 7 and 13 May 2026, I heard submissions from counsel for the applicant and first respondent on the point *in limine* raised by the first respondent and on the merits of the dispute. Thereafter, I reserved my judgment *sine die*.

FACTUAL BACKGROUND

3. The following facts are common cause:

3.1 On 19 July 2023, before MHURI J, the court granted a default judgment against the applicant and the second respondent in favour of the first respondent for their eviction from stand 40715 Harare Township, measuring 1000 square meters, also known as number 9 Vickers Road, Belvedere, Harare. The court further ordered them jointly and severally, the one paying, the other to be absolved, to pay the first respondent holding over damages at the rate of US$15.00 or equivalent Zimbabwe dollars per day from 1 March 2019 to the date they would vacate the property together with interest at the prescribed rate as well as costs of suit on a legal practitioner and client scale. The matter was registered under Case No. HC 1056/23.

3.2 A perusal of the said record also shows that the taxed bill of costs amounted to US$8,073. 33 and RTGS$4,379,732.00. The applicant was legally represented at the taxation and cannot feign ignorance of the taxed costs, as apparent from the court record in HC 1056/23. The first respondent sued out for a writ of execution against movable and immovable property on 28 August 2025. From that writ, the holding over damages were now being calculated up to 3 August 2023. The immovable property to be subjected to judicial attachment was stated as "the Remaining Extent of stand 13687 Salisbury Township held under Deed of Transfer 6830/88 measuring 1387 square metres otherwise known as No. 9 Ridgway, Belvedere, Harare."

3.3 After the second respondent issued a *nulla bona* return of service, the Sheriff went on to attach the applicant's immovable property. The applicant's immovable property placed under judicial attachment was described as "certain 1387 square metres of land called stand 13687 Salisbury Township of stand 13755A Salisbury Township situate in the district of Salisbury" as per the Sheriff's reference SS number SH 1712/25.

3.4 On 3 October 2025, the applicant sought, through an urgent chamber application, the suspension of the sale in execution of the property in terms of rule 71(14) in Case No. HCHF 4257/25. The application was struck off the roll of urgent matters by KWENDA J on 25 November 2025. There are no reasons for that decision. None of the parties was sure

as to whether the application was struck off the roll due to a fatal defect or merely on the basis of lack of urgency. They were left speculating as to why the matter was struck off the roll. The parties did not request the written reasons thereof.

3.5 It was also common cause that the second respondent went on to start the judicial attachment afresh by serving a new notice of attachment in terms of rule 71(3) on 23 February 2026. While the new notice thereof was not placed before me, there was no dispute that it was served on the parties on that date and that it informed the applicant of her right to seek the suspension or postponement of the sale of the dwelling within ten (10) days after service. The applicant grabbed that opportunity and filed the present application on 9 March 2026. There was, therefore, no dispute that these proceedings followed a fresh notice of attachment served on 23 February 2026.

4. The applicant averred that she was awarded the property in terms of a divorce order granted in default of one Shingirai Fabio Nhowe before TAGU J (as he then was) on 20 May 2021 in Case No. HC 9350/12. She further stated that she resides at the property with her six (6) other family members: her adult sons, Louis Takunda and Kelvin Tawanda Nhowe; her daughter-in-law, Pamela Gandiwa; and her minor grandchildren, who are the children of one of her sons, namely Rufaro, Minaya and Mandipa Nhowe.

5. She seeks the suspension or postponement of the sale in execution of the property, a dwelling, on the grounds that its sale therefrom will likely make her or her family suffer great hardship and that she has made a reasonable offer to pay US$500.00 per month to settle the judgment debt. She further pleaded that she is a civil servant and could only be able to pay the said amount to discharge the judgment debt. She attached two copies of her payslips to substantiate her position. She prays for an order suspending or postponing the sale in execution of the property in terms of the draft order filed of record.

6. The first respondent, the only party that opposed the application, raised a point *in limine* that the matter is not properly before the court because it is fatally defective. It was contended that the applicant, having made a similar application before which was struck off the roll, the issue of suspension of the sale had been abandoned as no attempt was

made to rectify the defect within thirty days after the order striking off the matter from the roll or that the applicant did not enlist the matter on the ordinary roll in terms of rule 60(19).

7. On the merits, the first respondent contended that the applicant or her family would not suffer any great hardship should the property be sold, as the applicant had other assets. This was shown by the court order she attached to the application, in which the court, *per* TAGU J (as he then was), had awarded her the property in question, together with stand 7103 Westlea, Harare, and stand 6532 Westlea, Harare, as well as some movable property.

8. The opposing affidavit also raised allegations of unprofessional conduct on the part of the applicant's counsel, Mr *Matapura*. Costs on a legal practitioner and client scale *de bonis propriis*, payable jointly and severally with the applicant, were sought against him.

9. The first respondent also contended that the applicant had other assets, and given that she was gainfully employed, she could not be rendered destitute by the sale in execution. It was also argued that the offer to pay US$500.00 per month, given the debt exceeding US$60,000.00, was grossly unreasonable. There was a complaint that the applicant was hiring senior legal practitioners and prioritising their fees without settling the judgment debt and the taxed costs, which had been mounting in respect of matters filed in this court and the Supreme Court. It was finally contended that the application was a serious abuse of court process, which should be dismissed with costs on a higher scale.

10. In the answering affidavit, the applicant maintained that the application was properly before the court following the new notice of attachment arising from irregularities in the previous attachment. She denied withholding any material information to deceive the court. Several other averments were made therein; suffice to state that the applicant insisted that the application was meritable and ought to be granted, now with a prayer for costs on a higher scale.

11. On 7 May 2026, the parties' legal practitioners mutually agreed that I should adopt a rolled-up approach, thus allowing the parties to make their submissions on the point *in*

limine and the merits before the final decision can be made. Accordingly, with the consent of the parties, I directed that Mr *Gama*, counsel for the first respondent, start by motivating his point *in limine*. After the argument on the preliminary point, the lawyers thereafter argued on the merits, beginning with Mr *Matapura*, counsel for the applicant. I advised the parties that I will, therefore, first determine the preliminary point, and if it is dispositive of the matter, I will end there. However, once I find the point unsustainable and dismiss it, I will proceed to consider the merits of the application.

THE PRELIMINARY QUESTION

WHETHER THE APPLICATION IS PROPERLY BEFORE THE COURT

12. Mr *Gama* argued that the application was not properly before the court, given that the applicant had previously filed a similar application, which was struck off the roll by KWENDA J. He submitted that the question was whether or not the point *in limine* can be sustained in view of the fact that a fresh notice of attachment was issued by the Sheriff. In his view, as long as the previous application, which was struck off the roll, has not been withdrawn, it stands in the way of the present application because it is a similar application. He further argued that the law is now settled that once a matter has been struck off the roll and the applicant allows that matter to be deemed abandoned and dismissed, the applicant cannot reinstitute a similar application because he would have abandoned his cause. He referred me to the case of *Katsimberis & Anor v Sharpe & Ors* HH 771/20 *per* MAFUSIRE J (as he then was).

13. Counsel further argued that the issuing of a fresh notice of attachment does not dispose of the application that was struck off the roll. That does not bring the previous litigation to an end. It remains unresolved. He admitted that it was not clear from the order whether the matter was struck off the roll for non-compliance with the rules or for lack of urgency. He, however, argued that either way, the striking of that matter precludes the applicant from instituting a similar matter. If the matter was struck off on the basis that it was not urgent, then rule 60(19) stands in the way of the applicant, as the matter must be enrolled on the ordinary roll of opposed applications. The applicant cannot institute a

fresh application identical to one that has been abandoned or is pending as an ordinary court application before the court. That is the nub of the matter. When I queried whether there is an absolute bar in filing a fresh application, even assuming another similar one was pending, counsel insisted that one cannot file a similar application seeking the same relief. It was his view that the court is entitled to non-suit the applicant where it is clear to it that a pending application similar to the present matter is yet to be finalised.

14. Mr *Matapura*, on the other hand, argued that the issue raised by the first respondent can easily be resolved on the facts that appear on the record. He drew the court's attention to the facts that appear in the founding affidavit, which are not disputed in the notice of opposition, and which are also confirmed in the answering affidavit by the applicant. The first is that on 23 February 2026, the sheriff, acting on the first respondent's instructions, issued a fresh notice of attachment. The sheriff informed the applicant of her rights in terms of the rules. And these rights include the right of the applicant to seek a rule 71(14) relief. The second factual premise is that the initial application seeking the suspension of the sale was predicated on an irregularity admitted not only by the sheriff but also by the first respondent.

15. Counsel went on to argue that the whole process of execution was targeted against an incorrect property. The notice had described the wrong property. The application was made to this court for the suspension of the sale of the wrong property. The parties then came to the recognition that everything was a nullity, and the sheriff did the right thing by electing to start the process afresh. The argument that the current application could not have been made because of the existence of a similar application which had been advanced pursuant to a wrong description of the property is dishonestly raised.

16. It was further submitted that, by the facts on the record and the provisions of rule 71(14) and (15), the current application is properly before me. It is an application made 10 days after receipt of a notice of attachment of a dwelling. It seeks to speak to the court in respect of that attachment. It is admitted that it is made within the timeframe. It is

admitted that it is pursuing that notice. And as a result, it cannot be argued that the current application is invalid.

17. Mr *Matapura* also submitted that there is no pending matter relating to the property defined by the sheriff in the notice of 23 February 2026. He argued that he did not agree that the same matter was determined by KWENDA J. The property and the notice involved are different in this case, and the judge was not confronted with the 23 February 2026 notice. He contended that the court's jurisdiction has been properly engaged. The matter was struck off the roll for lack of urgency. The matter could not have been pursued as the whole process was predicated on a wrong premise created by the real estate agent.

18. It was further argued that it would amount to unprofessional conduct for lawyers to pursue that kind of an application, where the sheriff has made an admission of irregularities. Even assuming that the application was taken to have been abandoned, there have been divergent opinions of this court on whether fresh proceedings can be instituted under those circumstances, or one has to engage the proceedings for reinstatement of the application. He referred me to the case of *Kumbemba & Anor v Mhazo*, HH 775/25, in which MANZUNZU J held that a fresh application can be made. It was held that the jurisdiction of the High Court is not blocked by the creation of a reinstatement provision. It was contended that the point *in limine* is not supported by the authorities. In any event, it is not an issue that arises in this matter. He finally submitted that the application is properly before the court and the matter ought to be heard on the merits.

19. Mr *Gama,* in reply, argued that he objected to the language used by Mr *Matapura that* the point had been dishonestly raised. I must state that, at this point, due to network challenges, I had to postpone the hearing to a later date, resulting in it continuing on 13 May 2026. When we resumed, I gave Mr *Gama* the floor as he was still making replying submissions. Mr *Matapura* intervened and alleged that he had noted an issue while going through the papers, which he intended to bring to the court's attention. I enquired if it had anything to do with the point *in limine* as it was Mr *Gama* who was still making

submissions when the court adjourned. He then claimed that he wanted to raise an issue in terms of s 175(4) of the Constitution as read together with subrule 108(2) of the High Court Rules 2021 and rule 24 of the Constitutional Court Rules 2016. He further argued that in terms of s 175(4) of the Constitution, at any stage during the hearing of a matter, if a constitutional issue arises, the court is then enjoined to take certain proceedings before it can proceed to deal with what is before it. I immediately stopped him from going any further, since it was Mr *Gama* who had been given the platform by the court to respond to Mr *Matapura*'s submissions on the preliminary point and was still addressing me. As Mr *Gama* was still addressing me in reply when the court adjourned, I directed that he proceed if he had any further argument to make.

20. Mr *Gama* went on to submit that Mr *Matapura* referred to s 175 of the Constitution. In other words, he is now making an application. He contended that counsel could not do so as he was the one still addressing the court. He argued that Mr *Matapura* was disrespecting the court. He further stated that when the judge was explaining to him how this matter should proceed, he was even talking while his Lordship was talking. As an officer of the court, he must respect the court. It cannot competently be said that you can just invoke any rule at any stage, even when, in fact, the court is hearing submissions from the other party. He argued that he does not see that those particular sections of the constitution would then override the basic procedure in respect of proceedings of a court when, in fact, it is at the stage of a reply in respect of argument on a point of law. I had already dealt with this issue after I ruled that the platform was still with Mr *Gama* to continue if he had further submissions to make.

21. Counsel further argued that Mr *Matapura* had to tame his language as he could not submit that the point *in limine* was taken dishonestly. He argued that if he believed that the point was not merited, he was entitled to tell the court to say the point taken has no substance. He maintained that the fate of the first application for suspension of the sale of the property in question falls to be determined by Practice Direction 3 of 2013, in particular para (5), and by that law only. The fate of that application is not automatically

determined by changing circumstances. The applicant had 30 days within which to take remedial action; if not, the applicant's case would be abandoned. The Supreme Court case of *Bindura Municipality* v *Mugogo* SC 32/15 should be followed. He maintained further that there is no difference between the two matters. He also argued that counsel did not address the papers before the court and gave evidence from the bar.

ANALYSIS

22. An application for suspension or postponement of a sale in execution of a dwelling is made in terms of subrule (14) as read with subrule (15) of rule 71. It must be made by the execution debtor in the form of a chamber application in the prescribed form within ten (10) days after he or she is served with the notice of attachment of the immovable property. The relevant provisions read as follows:

> "(14) Without derogation from subrules (11) or (13), where the dwelling that has been attached is occupied by the execution debtor or members of his or her family, the execution debtor may, within ten days after the service upon him or her of the notice in terms of subrule (3), make a chamber application in accordance with subrule (15) for the postponement or suspension of—
>
> (a) the sale of the dwelling concerned; or
>
> (b) the eviction of the occupants.
>
> (15) An application in terms of subrule (14) shall be made in Form No. 44 and filed with the registrar."

23. The point *in limine* cannot seriously detain this court. It was not in dispute that the Sheriff, upon accepting that the first attachment was ridiculed with irregularities, commenced the attachment afresh. There is no dispute that the Sheriff served the parties with a fresh notice of attachment of the property on 23 February 2026. The execution creditor did not object to this new process. Mr *Gama* even admitted that a fresh notice of attachment was issued on 23 February 2026. That admission resolves the issue. Accordingly, the service of a fresh notice of attachment of the property in question triggered the operation of the provisions of rule 71(14). The applicant immediately became entitled to invoke the provisions of rule 71(14) to make a chamber application for

the suspension or postponement of the sale of the dwelling as long as she genuinely believed that grounds for the grant of such relief existed.

24. The application that was struck off the roll before KWENDA J related to the original attachment of a property, which the parties accepted was irregular, necessitating the process to start afresh. It was premised on an attachment process considered a nullity and, therefore, lacked legal existence. The effect of a legal nullity is well-established. See *MacFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 at 1172 (PC) where LORD DENNING famously held as follows:

> "If an act is void, then it is in law a nullity. It is not only bad, but incurably bad. There is no need for the court to set it aside. It is automatically null and void without more ado... And every proceeding which is founded on it is also bad and incurably bad. You cannot put something on it and expect it to stay there. It will collapse."

Nothing valid can arise from an invalid process. Thus, CHITAKUNYE JA in *Aponte v Luigi & C. S. P. A & Ors* SC 89/25 at pp 12-13 made the following pertinent remarks:

> "Further, the default judgment being a product of a nullity cannot stand. Had the court *a quo* applied its judicial mind to the irregularities in question it would have come to the conclusion that the applications before it were not necessary as the prior proceedings were all a nullity. **It is trite that a nullity cannot beget a valid process, hence, all the processes were a nullity and generally one does not need to seek the setting aside of a nullity. This inevitably affects the validity of the proceedings before this Court as they were a product of invalid proceedings**." (*my emphasis*)

25. The debate as to whether the application struck off the roll ought to be pursued on the ordinary roll or whether a reinstatement was necessary is simply academic. The same relates to whether the applicant had to seek reinstatement or file a fresh application, and also to the effect of Practice Direction 3 of 2013 or rule 60(19). It is completely unnecessary for the court to consider those issues, given that the attachment had commenced afresh with the service of a fresh notice of attachment in terms of rule 71(3). That fresh attachment automatically brought the provisions of rule 71(14) into effect. It, therefore, means that the applicant was entitled to file the present chamber application by operation of law following the service of a fresh notice of attachment of the dwelling on 23 February 2026. The previous processes and the application premised on them could not be validly pursued by any party if ever there was any pending application.

26. Mr *Gama* also made submissions in the dark as he was not even sure why the application was struck off the roll. He simply speculated on the reason why the matter was struck off the roll. Whether the basis for the order was that of lack of urgency or that the application was afflicted with fatal defects is an issue not worth wasting the court's time, as long as all parties accept that the entire process of the attachment of the applicant's immovable property commenced anew by the service of the fresh notice of attachment on 23 February 2026. The application is properly before the court. It is sanctioned by the clear provisions of rule 71(14) as read with subrule (15). The argument that the application was not properly before the court or fatally defective was utterly meritless and a sheer waste of the court's time. The point *in limine* raised by the first respondent is accordingly dismissed.

27. I will now turn to the merits of the application.

SUBMISSIONS ON THE MERITS

SUBMISSIONS ON BEHALF OF THE APPLICANT

28. Mr *Matapura* submitted that he abided by the heads of argument filed of record. He argued that the applicant must demonstrate that the disposal of the property in execution will result in undue hardship on her part and place a reasonable offer or a basis upon which she then seeks the intervention of the court to suspend the sale, either on condition that she pay a certain amount on an instalment or at a date to be determined by the court. The notice of attachment identified the property as the applicant's current dwelling house. There is no dispute between the parties that the applicant is actually dwelling at this property. The applicant approaches this court in terms of rule 71.

29. Counsel went on to submit that, in considering and engaging the question of whether the court must exercise its discretion and allow the suspension, one of the critical questions that must arise is what the circumstances are under which the debt arose. This brings us to two critical orders: one made by TAGU J (as he then was) and the other by MHURI J. The property was awarded to the applicant as her sole and exclusive property in the divorce proceedings before TAGU J. The court was alive to the fact that certain processes

sought to disturb the extent of the property. The court then said that the property's condition or status was as defined in 2020. In para (11) of her founding affidavit, the applicant said that the property is her primary and only residence. It was awarded to her through a court order for a decree of divorce. The order is self-explanatory. The judgment of MHURI J ordered the eviction of the applicant from a portion of that property and required her to pay holding-over damages of US$15.00 per day.

30. I must state that there were several objections raised by Mr *Gama* related to Mr *Matapura*'s submissions that they were divorced from the evidence in the applicant's founding affidavit. I had to direct counsel to deal with issues arising from the pleadings before the court, given that an application stands or falls on the averments made in the founding affidavit.

31. Counsel went on to refer me to the case of *Masimbe v Rainbow Tourism Group* HH 158/16 and argued that the court must look at the circumstances of the debt. He argued that this is not a matter where the applicant has gone and borrowed money. That is not to say that the judgment by MHURI J should be ignored. It must be given effect to as it is extant. The same must be said of the judgment by TAGU J. He further argued that in terms of s 56(1) of the Constitution of Zimbabwe, 2013, all persons are equal before the law and have the right to equal protection and benefit of the law. Counsel submitted that the carrying into execution of that judgment directly violates the applicant's s 56(1) rights. Though both parties hold judgments giving them rights, the applicant's rights and her protection have been subordinated to the rights of the first respondent.

32. I hasten to state that the execution of the applicant's immovable property arises from a default judgment. While Mr *Matapura* complained about its enforcement, there was no dispute that the order is still extant. It was accordingly enforceable, hence the writ of execution in question. The applicant had every right to challenge the order through the appropriate procedure, and once she failed to have it set aside, the order remains binding and enforceable against her. Indeed, she sought the rescission of the default judgment in

Case No. HC 5123/23 and the application was dismissed before MANYANGADZE J on 28 March 2025. Attempts to overturn the decision in the Supreme Court failed, too.

33. I had to ask counsel to restrict himself to the matter before me and the relevant issues. He went on to submit that the applicant has made a reasonable offer. She has placed an offer of US$500.00 per month towards the retirement of the debt. He argued that, despite the circumstances under which this debt is arising, as a civil servant, she is committed to paying the said sum to liquidate this debt. The respondent has taken the position that, because of the order by TAGU J, the applicant has other properties that she can go to and reside in, allowing us to sell this particular one. He argued that the respondent knows that those properties are not available for execution. Counsel also submitted that, to show the applicant's genuineness and honesty, if the respondent takes the view that those properties are available, the applicant offers them to the respondent so that she can give instructions to the sheriff for their sale in execution with the consent of the applicant.

34. Counsel further argued that the debt could not have ballooned to US$60,000. There is no taxed bill attached to the notice of opposition. The letter attached to the opposing affidavit and the amount alleged for taxed costs are disputed and are even put in issue in the answering affidavit.

35. Mr *Matapura* strenuously opposed the averments that he had acted unprofessionally in this matter. He contended that the court ought to invite him to put an affidavit before ordering such costs *de bonis propriis*. His position was that there is no justification for such costs. That there was no misconduct on his part. He said that he did not advance falsehoods before the court. He did not withhold any information in respect of any process before the court. The majority of the para(s) in the first respondent's heads of argument have nothing to do with the parties. They are an attack on him that he is gleefully receiving his legal fees. There is nothing on record that shows that he has been gleefully paid. The point is made in counsel's heads of argument. The lawyers have made this their case, even though it is not.

36. It was also argued that the applicant had made a case for the suspension of the sale. The applicant had given a reasonable offer. He submitted that he humbly prayed that the court exercise its powers in terms of rule 71 and suspend the sale either for the applicant to pay US$500.00 per month or any other amount the court may deem payable within its reasonable discretion. The court must consider the grounds and the circumstances of the debt, and this is a matter that impacts the s 56 rights of the applicant.

SUBMISSIONS ON BEHALF OF THE FIRST RESPONDENT

37. Conversely, Mr *Gama* submitted that he would address only three issues. Firstly, whether the sale of the property in question renders the applicant destitute. The second issue was whether the applicant's offer to pay US$500.00 per month was reasonable, and, thirdly, the appropriate order of costs. In respect of the first issue, whether the applicant will suffer a great hardship if the sale proceeds, he submitted that it was clear beyond a reasonable doubt that the applicant has at least four assets. The first asset is the immovable property in question. The second and third assets are the immovable properties referred to in the order of this Honourable Court. And the fourth asset is her salary or income, which is also referred to in the founding affidavit. The applicant tells the court that for the next 10 years or so, she can pay US$500.00 a month. Such an amount can be used to pay for alternative accommodation for herself.

38. Mr *Gama* further argued that counsel for the applicant told the court that the properties referred to in the court order are not available. He does not tell the court what happened to those properties. He placed no documentation before the court, whether of a sale, a donation, or of their being compulsorily acquired by the state. A litigant who seeks the court's mercy ought to be candid. The applicant asks the court to postpone or suspend the sale of her property. She wants the court's indulgence. The property was awarded to her by the court, and if she is no longer the owner of the other two properties, she must prove it. The applicant has tied the court's hands. The court can only reach the conclusion that the properties are still there, and the applicant can use both properties. So, it is clear that the applicant will never be rendered destitute by the sale of this property.

39. It was also contended that the first respondent is entitled to have the property sold in execution because she has a court order. To come to court and say that, because the first respondent attached her dwelling, it follows automatically that she has no other property, is not to take the court seriously.

40. On the second issue, which is the reasonableness of the applicant's offer to settle the debt, counsel implored the court to take judicial notice of the contents of its records in accordance with the principle in *Mhungu* v *Mtindi* in the following cases: HC 5141/23, HC 1056/23, HC 5123/23 and the Supreme Court matter in SC 485/23. He submitted that the holding over damages, which were awarded in HC1056/23, amounted to $23,500.00, and the taxed costs amounted to US$8,073.33. The taxed costs in HC 5141/23 amounted to US$8,301.90. The taxed costs, which were awarded in HC 5123/23, amount to US$21,600.00. Finally, the taxed costs, which were awarded in SC 485/23, amount to US$10,082.87. These taxed costs are referred to in the opposing affidavit, in particular para 5(h). The total amount due as of now is US$71,400.00, which the court can readily ascertain from the records mentioned. What this application amounts to is a request to the court to suspend or postpone the sale of the property in question for 12 years. This request is, by any account, unreasonable. The applicant said she is a civil servant and can only afford US$500.00. Reasonableness is not based solely on the salary amount; the interests of both parties must be considered.

41. Mr *Gama* also submitted that the law is very clear that a litigant who has been awarded an order by the court is entitled to execute his or her judgment. The court's approach is objective, not subjective. Reasonableness is an objective test; the approach should obviously consider all the circumstances. He referred to the case of *Masendeke* v *Central Africa Building Society & Anor* 2003 (1) ZLR 65 (H) and argued that the approach adopted in that judgment is the one the court should adopt. It would be grossly unreasonable for the applicant to take 12 years to pay the debt. The proposal was not made in good faith. The debt is now almost three (3) years old, and nothing has been

paid, nor has she offered to pay before. The applicant has only spoken to the first respondent through the court.

42. On the issue of costs, he argued that the applicant failed to disclose in the founding affidavit that she filed a similar application, which was struck off the roll. He further argued that to approach a court of law and seek to postpone this sale for 12 years is not only grossly unreasonable, but *mala fide*. That is something every officer of the court must address very carefully. Counsel for the applicant has said in court that he was dishonest, but the dishonesty was not proven. And even if it could be proved, he could have used better language.

43. It was further submitted that the court had to do its best to restrain Mr *Matapura*. That Mr *Matapura* appears before the court with a founding affidavit and an answering affidavit in front of him, but avoids the affidavits, and he says he was raising a constitutional question and sought to speak while he was the one addressing the court in reply to his submissions. While the court was speaking, he was speaking as well. Officers of the court must always respect the court. The constitutional point which was raised is not based on any allegations made in the founding affidavit. He had argued that there is discrimination, but the founding affidavit says nothing about discrimination. The court asked him questions, hoping to dissuade him from abusing the court process. He insisted and has seriously abused the court process. He has seriously disrespected the court and his colleague. On those grounds, counsel prayed for costs *de bonis propris* against Mr *Matapura*.

44. Mr *Gama* finally submitted that, on the grounds he raised as amplified in the heads of argument and opposing affidavit, he prayed that the application before the court be dismissed with costs on a legal practitioner and client scale, such costs to be paid by the applicant and Mr *Matapura* jointly and severally, the one paying the other to be absolved.

REPLYING SUBMISSIONS

45. Mr *Matapura* submitted that the court bemoaned the diversion from the real and substantive issues of the parties to allegations between himself and Mr *Gama*. He further

argued that, in respect of the request for costs *de bonis propriis* against him, a proper inquiry must be made. He argued that it was not correct that he had not placed the information about the application that was struck off the roll with the intention to deceive the court. The judgment creditor did accept that the processes that were engaged were flawed. Mr *Gama* does not dispute that. To say that when you are then served with a notice and you want to make an application, you take the court through all the processes which we have admitted on our own are flawed, is abusing the court. There was no need to take the court to a nullity that the other party has accepted as such. The current proceedings were brought about because the first respondent said that the sheriff should start again. There was no misrepresentation.

46. Counsel further contended that offering US$500.00 does not constitute an abuse of the court. The applicant makes an offer that is within her capacity. She disclosed where she could obtain the money to pay. The indication by the applicant of her income in circumstances before the court can never be regarded as abusing the court. It is accepted that she is a civil servant. It has not been demonstrated that she has any other income. The order may be varied on changed circumstances. To say he was abusing the court is nothing other than grandstanding.

47. Mr *Matapura* also submitted that the frustration was because of the taxed costs counsel is pursuing. He contended that the current application is provided for in terms of the rules. The first respondent merely said that the debt has ballooned because of punitive costs awarded against the applicant by the court. While the court can look at its records the issue is what the sheriff is confronted with which is a writ. And that writ tells you the order that must be satisfied in terms of the judgment debt and the costs. It does not enforce the other Supreme Court matter. The first respondent must have placed before the court those taxed bills and the writs that relate to them. But that was not done. Counsel simply read from a book and gave the court the case numbers.

48. He further argued that Mr *Gama* missed what s 175 says. He referred to the case of *Tomana* v *Judicial Services Commission* HH 281/16 and said the court held that a party

can bring a constitutional issue to the court in two instances or by two ways, either orally or by written notice. He also referred to the case of *Martin v Attorney General & Anor* 1993 (1) ZLR 153 (S). It was argued that engaging a right in terms of a constitution cannot be construed as abusing the court. There has not been any indication that the raising of it is frivolous or vexatious. See also *Williams & Anor v Msipa N.O* 2010 (2) ZLR 552 (S). He submitted that the cases were being raised in his argument in relation to the prayer for costs *de bonis propriis*.

49. Counsel further explained that, as the proceedings were being held virtually and due to internet interferences, one may think that a party has stopped talking or that His Lordship has stopped talking, and then you engage, genuinely so, without any intention to disrespect the court. That was probably the situation Mr *Gama* perceived as an interference with the court. He further contended that there have been several sessions where one would be talking and the other side would not be hearing. It is not disrespecting the court. We are adjusting to the use of the virtual court. It was submitted that he did not in any manner in these proceedings engage in unethical conduct that deserves the nature of the costs requested. There is no basis to seek costs on a higher scale let alone against the applicant.

50. Mr *Matapura* insisted that the applicant indicated her personal circumstances, and also highlighted the other ground upon which she sought the sale to be suspended. He maintained that a case for the relief in terms of rule 71(15) had been made and prayed for the application to be granted. In his view, considering that this is a plea of assistance of the court in order for the applicant to retire the debt as in favour of the first respondent, it would be proper that each party bear its own costs.

THE ISSUE FOR DETERMINATION

WHETHER THE APPLICANT HAS SATISFIED THE REQUIREMENTS FOR THE SUSPENSION OR POSTPONEMENT OF THE SALE OF THE PROPERTY

THE LAW

51. Rule 71(18) of the High Court Rules, 2021 sets out the requirements that must be met for an order for the postponement or suspension of a sale of a dwelling. The judge must be satisfied that the applicant or his or her family will likely suffer great hardship if the property, which is a dwelling, is sold and that the applicant has made a reasonable offer to settle the judgment debt. The judge may also postpone or suspend the sale of a dwelling for some other good ground. In the circumstances, the applicant seeks an indulgence, the grant of which lies within the court's discretion. The judge, in exercising his or her discretion, must consider the requirements set out in subrule (18) of rule 71. The relevant provisions read as follows:

> "(18) If, on the hearing of an application in terms of subrule (14), the judge is satisfied—
> (a) that the dwelling concerned is occupied by the execution debtor or his or her family and it is likely that he or they **will suffer great hardship if the dwelling is sold** or they are evicted from it, as the case may be; **and**
> (b) that—
> (i) the execution debtor **has made a reasonable offer to settle the judgment debt**; **or**
> (ii) the occupants of the dwelling concerned require a reasonable period in which to find other accommodation; **or**
> (iii) **there is some other good ground** for postponing or suspending the sale of the dwelling concerned or the eviction of its occupants, as the case may be;
> the judge **may** order the postponement or suspension of the sale of the dwelling concerned or the eviction of its occupants, subject to such terms and conditions as he or she may specify." (*my emphasis*)

52. In considering the requirements for the postponement or suspension of a sale of a dwelling, the judge must be alive to the competing interests of the execution creditor and those of the execution debtor. It is trite that once a court delivers a final judgment, the victorious party (the judgment creditor) is entitled to enforce the order and reap its benefits - often referred to as the "fruits of the judgment". This was affirmed in *Humbe v Muchina & Ors* SC 81/21, where MATHONSI JA said:

> "It is settled in this jurisdiction that a judgment creditor is entitled to attach and have sold in execution the property belonging to the judgment debtor. This is so even in a situation where a third party has a personal right against such a debtor in respect of the same property. The position is the same even where the personal right of the third party preceded the attachment of the property. See Herbstein and Van Winsen, *Civil Practice*

> *of The Superior Courts in South Africa* 3rd Ed at p597 (quoted with approval in *Maphosa & Anor v Cook & Ors* 1997 (2) ZLR 314 (H) at p316G)."

53. On the other hand, if the immovable property that has been attached is a dwelling, the judge must also consider whether the judgment debtor or his or her family will likely suffer great hardship if it is to be sold or if he or she is evicted. Rule 2 defines a "dwelling" to mean "a building or part of a building including a flat, designed as a dwelling for a single family and includes the usual appurtenances and out buildings associated with such a building."

Given the interests of the execution creditor in the sale in execution of the dwelling, the law clearly sets the bar of hardship higher than ordinary hardship or inconvenience. The hardship must be great. This is also the case because a sale in execution is, by its nature, a forced sale, and it would ordinarily affect the judgment debtor, as it is not made on a willing seller-willing buyer basis. Even the property values arising from such a forced sale are accepted as lower than the market value obtainable in a willing seller-willing buyer sale transaction. The applicant must, therefore, demonstrate that she or her family will likely suffer great hardship if the property is sold. This position was fully explained in *Masendeke v Central Africa Building Society & Anor* (*supra*) at 69A-B, where CHINHENGO J (as he then was) correctly held that:

> "In my view, **the hardship must be more than the ordinary hardship which persons deprived of their place of residence ordinarily suffer such as the attendant inconveniences in finding and paying for alternative accommodation or the need to relocate to another residential place such as a rural home or a rented accommodation**. **The hardship must be great in that it results in the execution creditor being rendered homeless or destitute.** The second requirement relevant to this application is whether the execution debtor has made a reasonable offer to settle the judgment debt. Subrule 5e)(b)(iii) of r 348A also empowers the judge to postpone or suspend the sale of the dwelling for "*some other good ground*". (*my emphasis*)

APPLICATION OF THE LAW TO THE FACTS

54. In *casu*, I must determine first whether the sale of the property will likely result in the applicant or her family suffering great hardship. In other words, the question would be whether the sale will likely render her or her family destitute. It was not in dispute that the property in question constituted a dwelling as defined in the court rules. It is common

cause that the applicant resides at the property with her two adult sons, her daughter-in-law and three minor grandchildren who are the children of her adult son and her daughter-in-law. It is trite that an application stands or falls on its founding affidavit. Thus, in *Chironga & Anor v Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ 14/20 at p 8 HLATSHWAYO JCC said:

> "It is trite that an application stands or falls on the averments made in the founding affidavit. See Herbstein & van Winsen the Civil Practice of the Superior Courts in South Africa 3rd ed (hereinafter 'Herbstein &Van Winsen or the Authors') p 80 where the authors stated that:
>
> > "The general rule, however, which has been laid down repeatedly is **that an applicant must stand or fall by his founding affidavit and the facts alleged therein, and that although sometimes it is permissible to supplement the allegations contained in that affidavit, still the main foundation of the application is the allegation of facts stated therein, because these are the facts which the respondent is called upon either to affirm or deny**. If the applicant merely sets out a skeleton case in his supporting affidavits any fortifying paragraphs in his replying affidavits will be struck out." (*my emphasis*)

55. The applicant, in her founding affidavit, attached a divorce order granted before TAGU J (as he then was) on 20 May 2021 at p 12 of the record. In terms of the court order, in particular para 2, she was awarded the property in question, together with two other immovable properties, being stands 7103 and 6532, Westlea, Harare, and two motor vehicles and household goods. She, therefore, placed before the court evidence that she owned two other immovable properties outside the attached dwelling. It was incumbent upon her to explain that those other properties were no longer available or were uninhabitable. She did not. She placed no other evidence of any disposal of the properties. Her bald assertions that she will have no alternative accommodation or would be rendered homeless or a destitute by the sale of one of her properties, given para (2) of the court order, would not suffice.

56. The first respondent put the matter in issue in the opposing affidavit. She averred that, since the applicant owns two other immovable properties, she cannot allege that the sale would cause any great hardship to her or her family. In para 5(b) of her opposing affidavit, the applicant was challenged on the ground that she had lied, as evidenced by

the court order attached to her founding affidavit, which showed that she owns three properties, including the attached one. But instead of rebutting that position, which is even buttressed by the order she attached to her founding affidavit, in para 6 of her answering affidavit, she said: "I do not have any other properties". She did not bother to tell the court what happened to the properties she owns following the divorce proceedings, as evidenced by the court order she had filed. One who seeks an indulgence from the court or that the court exercises a discretion in his or her favour must be honest with the court and give a candid and full account of his or her circumstances. See *Zimslate Quartize (Pvt) Ltd & Ors* v *Central African Building Society* SC 34/17, which related to the indulgence of condonation but emphasised the same principle that "[a]n applicant who takes the attitude that indulgence, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed".

57. The applicant went on to purport to shift the burden to the first respondent to place evidence before me that she owns other properties. She forgot that she was the one who had already placed that evidence before the court, establishing her ownership of those other assets, and had to explain that the other assets were no longer available by tendering the evidence to establish that. The existence of the other assets, as shown in the court order, would mean that the applicant can reasonably turn to them. She cannot be rendered destitute by the sale of only one of them, even if she says they are undeveloped stands. Mr *Matapura* also argued that the applicant would offer them to the first respondent to sell instead of the dwelling house if she insists that they are available, but that argument does not assist the applicant either, as she had not explained how those assets cannot be resorted to if the attached property is sold.

58. Further, it was not seriously challenged that the applicant is gainfully employed by the Government through the Public Service Commission. The evidence before me shows that she is a civil servant who earns a monthly salary, as shown by the copies of the pay slips she placed before me. She even stated that she can afford to pay US$500.00 per month

towards the debt. This shows that she has sufficient income to cover the cost of alternative accommodation if she is evicted from the property upon its sale. With such assets, including the other immovable properties, it cannot seriously be said that the sale would cause her or her family to suffer great hardship.

59. The applicant also did not make any averments in her founding affidavit that her adult children, her daughter-in-law and the grandchildren are her dependents. There is nothing to show that. The adult occupants did not give any evidence to show that they, too, would be equally rendered destitute by the sale of the applicant's property. The court can act only on evidence, not speculation. This position was affirmed in *Chinyenze* v *Law Society of Zimbabwe* SC 08/22 para 39, where the Supreme Court held that:

> "**It is trite that courts**, and indeed the Tribunal, **decide matters on the basis of evidence that is placed before them and not on the mere say so of a litigant**. **Every averment made must be substantiated by evidence in order for the court to place any weight on it**. Bald assertions will not assist a litigant who desires to establish his case." (*my emphasis*)

60. Further, the applicant did not specifically challenge the averments by the first respondent in para 5(o) of her opposing affidavit that her children are all adults. And also, that the named grandchildren are family to and dependants of their own parents. She simply gave a generalised response in para 9 of her answering affidavit, which did not even address the averments made. In other words, she did not specifically controvert the fact that her children are all adults and that the grandchildren are dependents of their own parents. It is trite that anything not denied or specifically controverted in an affidavit is taken to be admitted. See *Fawcett Security Operations (Pvt) Ltd* v *Director of Customs & Excise & Ors* 1993 (2) ZLR 121 (S). Thus, the unanswered material allegations in the affidavit are conceded. To that extent, her situation is different from that in *Machiwenyika* v *Chingwaru* HH 818/22, where the children who stayed with the applicant in that case were under his care. The court reasoned as follows:

> "[27] On analysis, each case revolves on its merits. In this case, **this dwelling has been the shared family home for the applicant, his children** and their deceased matriarch. Thus, apart from being, a place of abode, it carries with it, a lot of memories and is of sentimental value.

> [28] Inevitably, relocation, living familiar settings, community and environment does have some psychological effects and emotional impact to people in general. **Particularly, the orphaned children, in this family**, where their educational welfare may be interfered with in terms of proximity and class of schools. A research by Wendy Winer, 'The emotional Impact of Frequent Moves During Childhood' 16 October 2017 Publication, reveals the adverse effects of such translocations from a family home on the child's future behavioural patterns, with worrisome manifestations, in their adult life." (*my emphasis*)

61. In this case, the applicant did not deny that the minor children are the dependants of their parents, who included her adult son and daughter-in-law. They are not the applicant's own children. She did not even disclose the financial condition of their parents. They said nothing before the court about how the sale could affect them as adults with their own children. I agree with Mr *Gama* that the applicant clearly sought to weaponise these minor children. There is no evidence that they, too, would be rendered destitute by the sale, as their own parents did not file any supporting affidavits or place anything before the court. I, therefore, reject the attempts by the applicant to claim that the sale directly violates the rights of the children and renders them vulnerable and destitute. The applicant mischaracterises her application, and the arguments on the best interests of the children are misplaced. They are attempts to hoodwink the court. It was not shown that the minors, aside from not being her dependents, had any interests in the property.

62. In any case, with her monthly salary and the other assets outside the attached property, the applicant should be able to find and pay for alternative accommodation for herself or her family. Of course, the property may have a sentimental value to her, but that, *per se*, is not sufficient to constitute a great hardship that should necessitate the postponement or suspension of the sale. I do not, therefore, agree with Mr *Matapura* that the applicant or her family in the circumstances would be rendered homeless or destitute so as to warrant the court's interference with the right of the first respondent to enjoy the "fruits of the judgment" in her favour.

63. In respect of the second part of the enquiry as to whether or not the applicant has made a reasonable offer, it must be stated that the court adopts an objective test. The court must consider all the circumstances and not solely one factor, which is the applicant's salary.

In any case, the applicant's papers did not attempt to demonstrate that US$500.00 was reasonable, based on her income as shown on the payslips. She merely threw in the copies of the pay slips without any attempt to specifically relate to the figures therein. She did not speak to those documents about how much, in United States dollars, the other component in local currency would give her per month, or how she had arrived at the figure of US$500.00 per month as the amount she could pay from the figures stated in both United States dollars and the Zig currency.

64. The offer must also be considered in the context of the judgment debt due and payable. The writ the first respondent sued out on 28 August 2025 only showed that the judgment debt she seeks to recover is calculated at US$15.00 per day from 1 March 2019 to 3 August 2023, together with interest (the first respondent gave the total figure as US$23,500.00). The taxed costs thereof, as per that writ, are the sum of US$8,073.33. The other component was in RTGS dollars. The court is entitled in the circumstances to consider its record and take notice of its contents. See *Mhungu* v *Mtindi* 1986 (2) ZLR 171 (S).

65. I, however, agree with Mr *Matapura* that the writ of execution being enforced by the sale relates to the order before MHURI J obtained on 19 July 2023. There is no evidence before me that the other taxed costs have writs participating in the current sale. While the issue of taxed costs can simply be taken note of by a look at the court records, this court must not lose sight of the fact that it is dealing with the writ of execution issued to recover the judgment debt and taxed costs in terms of a court order granted on 19 July 2023 under Case No. HC 1056/23. That is the judgment debt and costs I can relate to in assessing the reasonableness of the offer made, given that there is no other evidence of any participating writs for any other taxed costs arising from the other matters. The mere reading of the reference cases and the amounts for taxed costs by Mr *Gama* cannot assist the first respondent in seeking to argue that the judgment debt and costs I am dealing with are in excess of US$60,000.00 or US$71,400.00 as submitted.

66. The evidence before me shows that the judgment debt, interest and costs relating to the judgment being enforced under HC 1056/23 would be estimated at an excess of US$31,500.00 and not US$71,400.00. The offer of US$500.00 per month would mean that the applicant would require more than five (5) years to pay the debt and costs. It must also be considered that the amount has been due since 19 July 2023, and the applicant has not paid a single cent to date. It is now close to three (3) years since the order was granted. While she had initially challenged the order and lost the fight, she never made any offer to pay the debt, save for the one in her application before me. That is not the conduct of a litigant who genuinely desires to settle her obligations as directed by the court. In all these circumstances, it cannot be taken that the offer of US$500.00 per month, the figure of which was not demonstrated to be what she can afford from her salary, is reasonable. As reflected in *Masendeke* (*supra*), each case must be determined in its own circumstances.

67. While there is no dispute that the judgment debt did not arise from reckless borrowing but that it arose from a dispute over an immovable property as holding over damages, for the applicant to take an excess of five (5) years, in addition to the other delays endured by the first respondent since the applicant lost her fight to have the default judgment rescinded, would not by any stretch of imagination in the circumstances be considered reasonable. The offer is, in my view, grossly unreasonable and does not show that the applicant seriously intends to pay this debt. She cannot be expected to remain in the comfort zone as if the interests of the judgment creditor do not matter. The court cannot merely consider her own interests. To do so would defeat the whole purpose of the remedy under subrule (14) as read with subrule (18) of rule 71.

68. It is trite that a valid order of court must be obeyed and given effect to unless it has been reversed or set aside. See *Mauritius & Anor* v *Versapak Holdings (Pvt) Ltd* SC 02/22. The order by MHURI J remains extant and must, therefore, be enforced. While the court has inherent power to control its own process and procedure, subject to the rules of court, the court can only intervene to disturb the execution process and stay the sale if the

requirements of subrule (18) of rule 71 are satisfied. I am not satisfied that the applicant or her family will likely suffer great hardship if the dwelling is sold, and in any event, the offer made is grossly unreasonable in the circumstances. There is also no other good ground that exists or was pleaded for the suspension or postponement of the sale.

69. In what I can consider an act of desperation, Mr *Matapura* belatedly sought to throw in s 56(1) of the Constitution and alleged that the execution of the judgment violates the right of the applicant to equality before the law. This was a strange argument indeed. The same was not arising from the pleadings before me. No facts alleging any unlawful discrimination arising from the execution or sale of the dwelling were ever pleaded in the founding affidavit. The argument was basically plucked from nowhere. As I have alluded to above, an application stands or falls on its founding affidavit. It is also trite that a constitutional cause of action must be pleaded. See *Stone & Anor v Central Africa Building Society & Anor* CCZ 05/24, where GOWORA JCC succinctly stated as follows:

> "The law is settled that, in constitutional litigation, the constitutional issue to be decided by the court must be specifically pleaded. **The requirement of specificity in constitutional litigation cannot be overlooked.** The procedural requirement for specificity in pleading requires that the challenged legislation and the grounds of such challenge be properly raised in pleadings. **There is need for accuracy in pleading in constitutional litigation and the required accuracy in pleading cannot be overlooked. It is critical in the determination of the issues to be decided by the court**. See *Philips & Ors v National Director of Public Prosecutions* 2006 (1) SA 505 (CC) para 40 and *Shaik v Minister of Justice & Constitutional Development* 2004 (3) SA 599.
>
> **The failure to plead a cause of action with the required accuracy and specificity in the matter *a quo* was fatal**. Despite the irregularity and the inherent conflict, the court *a quo* found that the Directive was not grossly unreasonable but still granted an order declaring it ultra vires the Exchange Control Regulations. It also found that the Reserve Bank was empowered to issue Directives under the Regulations. By eschewing fundamental constitutional principles, **the court a quo determined an application that was improperly placed before it**." (*my emphasis)*

70. In *casu*, Mr *Matapura* argued a violation of s 56(1) rights without reference to the applicant's own founding affidavit. There has not been pleaded anything to support the constitutional argument; it was clearly incompetent for counsel to purport to invoke s 56(1). There was also no challenge to the sale in execution on the ground of unconstitutionality. Having placed no constitutional issue properly before me, there was

no constitutional question that arose for determination. There was also no application for referral to the Constitutional Court made in terms of s 175(4) of the Constitution. No constitutional question also arises from the pleadings before me. Counsel sought to cling to anything he could find, as he realised, albeit late, that the applicant had no case on the merits. She has failed to demonstrate the grounds for the application under rule 71(14) as read with subrule (15) to trigger the exercise of my discretion in her favour. There was nothing before me to warrant the indulgence sought. Accordingly, the application cannot succeed.

THE APPROPRIATE ORDER OF COSTS

71. Before I consider whether the costs are payable and, if so, at what scale, I must reinforce the principles which are the hallmark of our system of administration of justice. Legal practitioners are officers of the court. Inasmuch as they represent their clients in court, they are not hired guns but must always be reminded that they have taken an oath to advance the due administration of justice. They must remain professional and ethical in their conduct towards the court and other members of the profession. They ought not to be associated with their clients' causes. Their language in court, whether in the pleadings or in their submissions, must be measured and remain appropriate and respectful at every stage of court proceedings. The use of intemperate language brings the administration of justice into disrepute. Where they have crossed the line, they must be held to account for their unworthy conduct through an appropriate order of costs and a referral to their regulator for disciplinary purposes.

72. Lawyers must always respect the court processes as they are serious proceedings. They cannot partake in any abuse of court process or assist clients to do so. The legal position was remarkably restated in *Selex Es P.A v State Procurement Board & Ors* SC 45/16 at pp 8-9, where BHUNU JA said:

> "The courts frown upon that despicable type of conduct which is punishable by an award of costs at the punitive scale. Thus where a legal practitioner institutes or defends appeals with full knowledge that there are absolutely no reasonable prospects of success,

he or she might expect to bear the wasted costs occasioned by his or her wrongful conduct *de bonis propriis*.

Although lawyers have a duty to their clients, their duty to the court is paramount as propounded by MANGOTA J in *Sergeant Mutasa C. 0477442S v The Board President (Chief Superintendent Dube N) and Another* HH – 9- 15 at p 6 where he says:

> "The applicant's legal practitioner is an officer of the court. His duty is first and foremost to no one else but the court. The oaths which he took when he was admitted into the profession beckon him to always remain truthful with himself, with the court, with fellow legal practitioners and with those whom he represents in, and out of, court."

Mr *Mazonde*'s duty to court obliged him not to abuse court process by defending the indefensible in a court of law. He also had a duty to advise his client properly as per MAKONI J's observation in *Base Minerals Zimbabwe (Pvt) Ltd and Another v Chiroswa Minerals (Pvt) Ltd and Ors* HH - 21 – 16 where the learned judge said:

> "It cannot be over emphasised that a lawyer has a duty to advise his clients properly regarding the law as well as procedure. A lawyer owes a duty to the court not to be complicit in instituting proceedings which amount to an abuse of court process. See *Ndlovu v Murandu* 1999 (2) ZLR 341 (H) at pages 350 – 351.""

73. Regrettably, in this case, the parties' legal practitioners decided to treat these proceedings as if they were a battle of wits between them. That the proceedings before me were simply between the applicant and the first respondent was needlessly buried by the devotion of their greater time at the hearing and in the papers in attacking the conduct of each other. Yes, the conduct of legal counsel ought to be questioned where necessary, but that should not substitute the matter for a battle between the lawyers. Mr *Gama* and Mr *Matapura* are very senior lawyers who should know better.

74. The law is clear that costs are a matter within the discretion of the court. The general rule is that costs shall follow the cause. See *Mbatha v Ncube and Anor* SC 109/22 at p 13, para 31. It is also settled law that costs on a legal practitioner and client scale are granted in exceptional circumstances. They are not merely granted upon a litigant's request. The law was restated in *Takashinga Kare Housing Pay Scheme* v *City of Harare & Ors* SC 88/25 at p 16, where MWAYERA JA said:

> "40. It is common cause that the award of costs is at the discretion of the court. However, where the court has awarded costs on a legal practitioner and client scale, it ought to justify the awarding of such costs. AC Cilliers in *The Law of Costs* 2nd ed p 66, classified

> the grounds upon which the court would be justified in awarding costs as between attorney and client, and they are as follows:
> (a) Vexatious and frivolous proceedings
> (b) Dishonesty or fraud of litigant
> (c) Reckless or malicious proceedings
> (d) Litigant's deplorable attitude towards the court
> (e) Other circumstances
> 41. In *Dongo* v *Joytindra Natveral Naik* & *Ors* SC 52-20 at p.11, the court held that:
>
> > "It is settled law that costs are at the discretion of the court. The award can only be set aside where the discretion was not exercised judiciously. It is also settled that costs on a higher scale are granted in exceptional circumstances. The grounds upon which the court would be justified to make an award for costs on a legal practitioner and client scale include dishonest or malicious conduct, and vexatious, reckless or frivolous proceedings by and on the part of the litigant concerned."
>
> 42. Punitive costs are awarded in circumstances where the court sees it fit to punish a party who has abused the court process."

75. The law is further settled that courts do not make an order for costs *de bonis propriis* against legal practitioners lightly. Such costs are awarded only in serious cases of misconduct, negligence or dishonesty. See *Masama* v *Borehole Drilling (Pvt) Ltd* 1993 (1) ZLR 116 (S) at 120G; *O-marshah* v *Kasara* 1996 (1) ZLR 584(H) at 591F and *Matamisa v Mutare City Council (Attorney-General intervening)* 1998 (2) ZLR 439;

The correct legal position was further restated in the South African case of *South Africa Liquor Traders Association & Ors* v *Chairperson, Gauteng Liquor Board & Ors* 2009 (1) SA 565 (CC) at para 54, where the Constitutional Court said:

> "An order of costs *de bonis propriis* is made against attorneys where a court is satisfied that there has been negligence in a serious degree which warrants an order of costs being made as a mark of the court's displeasure. An attorney is an officer of the court and owes a court an appropriate level of professionalism and courtesy."

76. I am confronted with a claim for costs on a legal practitioner and client scale *de bonis propriis* against Mr *Matapura*. Several grounds for this were raised. Firstly, it was alleged that he had not disclosed that a similar application had been made and struck off the roll, with the intention of deceiving the court. I do not believe that, from the facts and circumstances of the historical litigation and processes, which were common cause, the allegation is sustainable. It was common cause that the attachment commenced afresh by the service of the notice of attachment on 23 February 2026. By not relating to the

previous processes that the parties had accepted as a nullity, it cannot be taken as a deliberate attempt to mislead the court. In any case, the non-disclosure cannot be material in the determination of this matter. Nothing would arise from the said invalid proceedings predicated on an attachment that the parties accepted was flawed or irregular and had to be abandoned.

77. It was also argued that the offer of US$500.00 per month was itself *mala fide* and an abuse of court process. I do not agree. The offer was what the applicant had averred was what she could afford. That it may turn out to be unreasonable in the circumstances does not make the offer an abuse of court process warranting penalisation of either her or her lawyer by an award of costs on a higher scale.

78. The other submission was that Mr *Matapura* abused the court process by seeking to invoke the provisions of s 175(4) of the Constitution in the midst of Mr *Gama*'s address in reply on the point *in limine*. While there was no doubt that what Mr *Matapura* sought to raise was not an objection and that he had sought to override the order of the proceedings as Mr *Gama* was still speaking, I do not consider that to be a reason that would justify that he be penalised with costs *de bonis propriis*. These missteps, although counsel did not acknowledge them as such, can occur during proceedings and do not, *per se*, amount to a serious lack of diligence or disrespect for court processes unless they become a pattern. Legal practitioners should not be penalised for every mistake, especially one that does not constitute serious or gross misconduct. The negligence must be of such a serious degree to warrant that the court mark its displeasure by an abominable award of costs *de bonis propriis*. See *South Africa Liquor Traders Association & Ors* (*supra*). I, therefore, endorse the apposite remarks made by FABRICIUS J in the South African case of *Multi-Links Telecommunications Ltd v Africa Prepaid Services Nigeria Ltd* 2014 (3) SA 265 (GP), cited with approval by the Supreme Court of South Africa in *Adendorffs Boerderye v Shabalala & Ors* [2017] ZASCA 37, who held as follows:

> [34]… Even more exceptional is an order that a legal representative… be ordered to pay the costs out of his own pocket. It is quite correct, as was submitted, that the obvious

> policy consideration underlying the court's reluctance to order costs against legal representatives personally**, is that attorneys and counsel are expected to pursue their client's rights and interests fearlessly and vigorously without undue regard for their personal convenience. In that context they ought not to be intimidated either by their opponent or even, I may add, by the court. Legal practitioners must present their case fearlessly and vigorously,** but always within the context of set ethical rules that pertain to them, and which are aimed at preventing practitioners from becoming parties to deception of the court.
>
> [35] It is true that **legal representatives sometimes make errors of law, omit to comply fully with the rules of court or err in other ways related to the conduct of the proceedings. This is an everyday occurrence. This does not, however, *per se* ordinarily result in the court showing its displeasure by ordering the particular legal practitioner to pay the costs from his own pocket. Such an order is reserved for conduct which substantially and materially deviates from the standard expected of the legal practitioners**, such that their clients, the actual parties to the litigation, cannot be expected to bear the costs, or because the court feels compelled to mark its profound displeasure at the conduct of an attorney in any particular context. Examples are **dishonesty, obstruction of the interests of justice, irresponsible and grossly negligent conduct, litigating in a reckless manner, misleading the court, gross incompetence and a lack of care**. See, for instance, Cilliers et al Herbstein & Van Winsen: *The Civil Practice of the High Courts of South Africa* 5 ed vol 2 at 984. See also *D Ward v Sulzer* 1973 (3) sa 701 (A) at 706G – 707H." (*my emphasis*)

79. The other reason for the prayer for costs *de bonis propriis* was that Mr *Matapura* interjected and spoke while I was speaking and, therefore, seriously disrespected the court. I did not find any disrespectful behaviour or conduct by Mr *Matapura* to justify penalising him. While I had, in some instances, directed him to argue the issues before the court, it is always the court that directs the proceedings. Different lawyers have their own style of presenting their arguments, but must always be guided by the issues in dispute or the matters the court must determine and the pleadings. The ability to be precise and deal with the real issues, and not everything, is understandably different from one lawyer to another. There is no reason in my view, in the circumstances, to conclude that Mr *Matapura* has crossed the line. After all, the parties faced apparent challenges during the virtual proceedings due to intermittent network connectivity issues. It would not be fair to merely use a few instances where we could not hear each other or where one would speak while the other, or I was still speaking, to conclude that the lawyer was being disrespectful to the court and must, therefore, be ordered to bear the costs of

litigation in his personal capacity. I am not satisfied that Mr *Matapura* disrespected the court as alleged.

80. There was also an allegation made by Mr *Gama* in the heads of argument that Mr *Matapura* has been gleefully receiving his legal fees upon tendering his invoice. However, there was no evidence to substantiate the allegations of improper conduct. While Mr *Gama* had complained that Mr *Matapura* had argued that he was dishonest, he overly depicted him badly by further stating that Mr *Matapura* was the "wise one" who "overzealously prevents" his client from recovering the debt and costs, while gladly receiving his fees all the time". See para 18 of the first respondent's heads of argument. The allegation that he had gone beyond what he was expected to do as a professional, or that he was gleefully receiving all his fees all the time, was unsubstantiated. The court cannot act on mere assumptions. In my view, it is critical that lawyers be reminded that they present clients' cases and cannot be identified with their clients' causes. If it is alleged that they have breached any ethical rules, there must be evidence to substantiate the allegation. In the circumstances, there is no basis for the prayer for costs *de bonis propriis* against the applicant's legal practitioner.

81. I am also not convinced that there was any abuse of court process by the applicant. Neither can her case be classified as frivolous or vexatious to amount to an abuse of court process. Her case simply failed to meet the threshold set out in rule 71(18) to trigger the exercise of the discretion in her favour. She had sought the indulgence of the court, which subrule (14) of rule 71 entitles her to seek. There was a fresh attachment of the property, which triggered the provisions of the said rule 71(14). The previous application, which was struck off the roll, related to the process, which all the parties accepted was irregular or flawed, resulting in the fresh attachment. That application was not even decided on the merits, for any argument that her claim then had no merit to even arise. The matter was simply struck off the roll before KWENDA J, and there are no reasons that could inform me as to why the application was struck off the roll. Accordingly, no *mala fides* arise, nor can it be said that the applicant has abused the court process in these proceedings. I,

therefore, did not find costs on a legal practitioner and client scale, let alone *de bonis propriis*, warranted in the circumstances.

82. In my view, there is no good reason to depart from the general rule that costs should follow the cause. Mr *Matapura* had argued that the appropriate order, since the applicant was seeking the court's mercy, would be for each party to bear its own costs. There is no doubt that the first respondent has incurred litigation costs while still seeking to recover the debt due from 2023. It would be fair for her to recover her wasted costs. Accordingly, an order that the applicant bear the costs on an ordinary scale would be proper and just in this case.

DISPOSITION

83. The applicant failed to demonstrate that she or her family will likely suffer great hardship if the property is sold and that she has made a reasonable offer to settle the judgment debt. In the circumstances, I am not satisfied that she is entitled to the relief sought. No good ground exists for the postponement or suspension of the sale of the property in question. The first respondent must be allowed to recover what is due in terms of the order of this court. The relief sought ought to be refused.

In the result, it is ordered that:

1. The application be and is hereby dismissed with costs.

DEMBURE J: ……

Mafongoya & Matapura Law Practice, applicant's legal practitioners
Gama & Partners, first respondent's legal practitioners